



CHAPTER I

An Act to confer powers upon the mayor aldermen and burgesses of the borough of Swindon with reference to the supply of hot water and of heat and for other purposes. [30th July 1949.]

WHEREAS the borough of Swindon in the county of Wilts is a municipal borough under the government and local management of the mayor aldermen and burgesses of the borough (in this Act called "the Corporation"):

And whereas it is expedient to authorise the Corporation to supply hot water and heat by means of hot water or steam within the limits defined by and subject to the provisions of this Act:

And whereas the Corporation have constructed certain works for the purposes aforesaid and it is expedient to confirm and authorise the construction of such works:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed: 23 & 24 Geo. 5. c. 51.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Swindon Corporation Act Short title. 1949.

Interpretation.
26 Geo. 5.
& 1 Edw. 8.
c. 49.

2.—(1) In this Act the several words and expressions to which meanings are assigned by section 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

“The borough” means the borough of Swindon;

“The Corporation” means the mayor aldermen and burgesses of the borough of Swindon;

“The council” means the council of the borough;

“The Minister” means the Minister of Health;

“The Act of 1936” means the Public Health Act 1936;

“The Act of 1933” means the Local Government Act 1933;

“Main” includes mechanical and thermal protection for a main and apparatus used in connection with a main;

“Fittings” means radiators pipes apparatus meters and fittings;

45 & 46 Vict.
c. 56.

“Electric line” has the same meaning as in the Electric Lighting Act 1882;

“Contravention” includes failure to comply and “contravene” shall be construed accordingly;

41 & 42 Vict.
c. 76.

“Telegraphic line” has the same meaning as in the Telegraph Act 1878;

“Heat” means heat supplied or intended to be supplied by means of hot water or steam;

“The heating undertaking” means the undertaking authorised by this Act and includes all lands stations boiler-houses properties works buildings machinery plant mains pipes apparatus appliances easements rights powers and privileges for the time being belonging to or held used or enjoyed by the Corporation for or in connection with the provision storage transmission distribution and supply of heat and hot water;

“The commission” means the British Transport Commission and any reference to the commission in relation to any functions of the commission which for the time being are delegated to an executive in pursuance of section 5 (The executives) of the Transport Act 1947 shall be construed as a reference to that executive;

10 & 11 Geo. 6.
c. 49.

“The authority” means the British Electricity Authority;

“The electricity board” means the Southern Electricity Board;

“The gas board” means the South Western Gas Board ;

“The water undertakers” in relation to a district or part of a district means every company local authority board committee or other person supplying water under an enactment in that district or part of a district ;

“Enactment” includes an enactment in this Act or in any general or local Act and any Order byelaw or regulation for the time being in force within the borough.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

3.—(1) In this Act the expression “heating limits” means— Heating limits.

(a) the borough as from time to time constituted ; and

(b) any county district or part thereof included in those limits under subsection (2) of this section.

(2) The council of any county district and the water undertakers may consent to the Corporation exercising the powers of this Act in the whole or any part of such county district (so far as such district or such part thereof shall be situate within five miles from the boundary of the borough as constituted at the passing of this Act) and thereafter the heating limits shall include such county district or so much thereof as may be the subject of such consent until such time as the Corporation and that council may otherwise agree :

Provided that—

(a) a consent under this subsection shall not be unreasonably withheld and any question whether such consent is unreasonably withheld shall be referred to and determined by the Minister ; and

(b) if the Minister determines that any such consent is unreasonably withheld in respect of a county district or part thereof the heating limits shall include such county district or such part until such time as the Corporation and the council of that district may otherwise agree.

4.—(1) The Corporation may supply heat to such premises Supply of heat. as they may think fit in the heating limits upon and subject to the terms and conditions provided by this Act and such other terms and conditions as may be agreed between the Corporation and the owners or occupiers of those premises :

Provided that in the exercise of the powers of this section the Corporation shall not show undue preference to any person and shall not exercise any undue discrimination against any person.

(2) Before the Corporation enter into an agreement with the occupier of any premises for the supply of heat to such premises they shall give notice of their intention to do so to the owner of the premises and in the event of the supply of heat to such premises being discontinued notice of such discontinuance shall be given by the Corporation to the owner of such premises.

Supply of
hot water.

5. The Corporation may in addition to or instead of supplying heat to any premises to which they are authorised by this Act to supply heat supply hot water to such premises and the provisions of this Act relating to the provision storage transmission distribution and supply of heat by the Corporation shall apply to the provision storage transmission distribution and supply of hot water by the Corporation.

Drying
of crops.

6.—(1) The Corporation may provide and use buildings and apparatus for drying grass and crops and may for such purpose provide and use heat supplied by means of hot water steam hot air or exhaust gases or other means.

(2) The Corporation may make such charges as they may think fit for drying grass and crops.

(3) Any buildings and apparatus provided or used under the powers of this section shall form part of the heating undertaking.

Works for
provision of
heat.

7.—(1) Subject to the provisions of this Act the Corporation may on lands in the heating limits belonging or leased to them erect lay down maintain work and use stations boiler-houses mains pipes and other works for providing storing transmitting distributing and supplying heat and for producing any material product matter or thing arising or used in the process of such provision of heat (including the generation of electricity) together with such buildings boilers engines machinery sidings electric lines matters and things of whatever description as may be required by the Corporation to enable them to provide store transmit distribute and supply heat and the Corporation may accordingly on those lands provide store transmit distribute and supply heat and may produce such materials products matters and things:

Provided that—

(a) nothing in this section shall be taken to dispense with the consent of any government department to any use of any lands of the Corporation in any case in which such consent would have been required if this section had not been enacted ;

(b) any electrical works or apparatus erected laid down maintained worked and used in pursuance of this section shall be so constructed maintained worked and used as to prevent interference with any telegraphic

line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

(2) Any electricity generated by the Corporation as aforesaid may be sold—

(a) to the authority ; or

(b) with the approval of the authority to the electricity board ;

and any electricity so generated and not so sold as aforesaid may only be used for or in connection with the supply of heat under the powers of this Act at the works at which it is generated or (with the consent of the authority and the electricity board) elsewhere.

(3) The authority shall take all the electricity generated by the Corporation as aforesaid which is not—

(i) required for or in connection with the supply of heat ;
or

(ii) supplied to the electricity board with the approval of the authority ;

upon such terms and conditions as may be agreed between the Corporation and the authority or in default of agreement determined by arbitration, on the basis of a supply by a willing seller to a willing buyer.

(4) Any matter to be determined by arbitration under the last preceding subsection shall be referred to and determined by an arbitrator to be agreed upon between the Corporation and the authority or in default of agreement to be appointed by the President of the Institution of Electrical Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such reference and determination.

8.—(1) If the Corporation shall resolve to construct extend modify or enlarge a station for providing heat under the powers of this Act they shall forthwith give to the Minister of Fuel and Power and to the authority and to the gas board notice of such resolution together with such information with regard to such station as the authority or the gas board as the case may be may within six weeks of the service of such notice reasonably require including information as to the nature position and capacity of the proposed station (but not details of design) the proposed method of producing heat thereat the area proposed to be supplied therefrom and an estimate of the quantity or quantities of heat required by the Corporation and of the times and form at and in which such quantity or quantities will be required Any dispute between the Corporation on the one hand and the authority and the gas board or either of them on the other

As to construction of station for providing heat.

hand as to whether any information is reasonably required by the authority and the gas board or either of them under this subsection shall be referred to and determined by the Minister of Fuel and Power.

(2) Within three months after the service of the said notice or the receipt of such information (whichever is the later) the authority and the gas board or either of them may serve upon the Corporation a counter-notice offering a supply of heat to them upon such terms and conditions as may be specified in the counter-notice or as may be agreed between the Corporation and the authority or the gas board as the case may be.

(3) If within three months after the receipt of such counter-notice or such longer period as may be agreed between the Corporation and the authority or the gas board as the case may be the terms and conditions upon which a supply of heat is to be given to the Corporation by the authority or the gas board as the case may be for the purposes of the heating undertaking are not agreed between them the Corporation shall submit to the Minister of Health for determination the question whether a supply of heat shall be afforded to the Corporation by the authority or the gas board and (if he determines that a supply of heat is to be afforded by the authority or the gas board) the terms and conditions upon which such a supply is to be afforded.

(4) If the Minister determines that a supply of heat shall be afforded to the Corporation by the authority or the gas board the authority or the gas board as the case may be shall afford such a supply in accordance with the terms and conditions approved by the Minister:

Provided that if the Minister makes a substantial alteration in the terms or conditions on which the authority or the gas board offered a supply of heat to the Corporation then if within fourteen days after the receipt of the determination of the Minister the authority or the gas board as the case may be give notice in writing to the Minister and the Corporation that the said terms or conditions are not acceptable they shall not be required to afford a supply of heat to the Corporation and the Corporation shall be entitled to proceed with their proposals as if this section had not been enacted unless within fourteen days of such last-mentioned notice the Corporation serve on the authority or the gas board as the case may be a notice requiring a supply in which case the authority or the gas board as the case may be shall afford a supply on the terms and conditions specified in the counter-notice referred to in subsection (2) of this section.

Power to buy
heat in bulk.

9.—(1) The Corporation may enter into and carry into effect agreements with any persons competent to supply heat for the furnishing to the Corporation by such persons of a supply of

heat for the purposes of this Act and any such agreement may provide for the provision by the Corporation or for the joint user by them and any other party to the agreement of any works plant materials or things required for the purposes of the agreement.

(2) The Corporation may for the said purposes also enter into and carry into effect agreements for the taking and use of waste heat hot water or steam from any generating station or gasworks and any authority entitled to give any such supply may enter into such an agreement.

10.—(1) The Corporation may be authorised by the Minister to purchase compulsorily for the purposes of the heating undertaking land within the heating limits. Purchase of land for heating undertaking.

(2) The Acquisition of Land (Authorisation Procedure) Act 1946 (except section 2 thereof) shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of that Act. 9 & 10 Geo. 6. c. 49.

(3) In this section the expression "land" includes easements and rights in respect of land and the Corporation may be authorised under this section to acquire compulsorily such easements or rights only as they may require without purchasing any other interest in the land. In relation to the compulsory acquisition of any such easement or right the Acquisition of Land (Authorisation Procedure) Act 1946 (except section 2 thereof) and the enactments incorporated therewith shall have effect as if references (whatever the terms used) to the land comprised in the compulsory purchase order were construed where the context so requires as references to the land in respect whereof the easement or right is acquired and references to the obtaining or taking possession of the land so comprised were construed as references to the exercise of the easement or right.

(4) Where the Corporation have acquired an easement or right only in any land under this section—

(a) they shall not be required or (except by agreement) entitled to fence off or sever that land from the adjoining land;

(b) the owner or occupier of the land for the time being shall subject to the easement or right have the same right to use and cultivate the land as if this Act had not been passed.

(5) If in his particulars of claim the owner of any land in respect of which notice to treat for an easement or right is given under this section requires the Corporation to acquire the land the Corporation shall not be entitled under this section to acquire

the easement or right unless the tribunal by whom the compensation is to be assessed determines that the easement or right can be granted without material detriment to the land or in the case of a park or garden belonging to a house without seriously affecting the amenity or convenience of the house:

Provided that nothing in this subsection shall apply to land forming part of a street.

(6) A notice to treat given under this section shall be endorsed with notice of the effect of subsection (5) of this section.

Further
powers as to
mains and
pipes.

11.—(1) For the purposes of this Act the Corporation shall have and may exercise the like powers and duties and be subject to the like restrictions as a local authority who supply water under the Act of 1936 have and are subject to under section 119 of that Act with respect to the laying and maintenance of water mains and for that purpose the mains and pipes for transmitting distributing or supplying heat shall be deemed to be water mains and any area within the heating limits shall be deemed to be within their district and section 278 (Compensation to individuals for damage resulting from exercise of powers under Act) and section 333 (Protection for works of dock undertakers and for railways) of the Act of 1936 shall apply to the exercise of those powers:

Provided that—

(a) nothing in this section shall authorise the Corporation—

(i) to lay down a main outside the heating limits except for the purpose of giving or facilitating a supply of heat within those limits or of taking a supply of heat from any works or premises outside those limits;

(ii) to supply heat to any premises outside the heating limits; or

(iii) to lay down a main in any land not forming part of a street and within two hundred and twenty feet of a trunk road except with the consent of the Minister of Transport;

(b) where the Corporation in the exercise of the powers of this section propose to lay down a main in a trunk road outside the heating limits section 16 of the Act of 1936 as applied by this section shall have effect as if in paragraph (b) of subsection (1) and in subsection (2) the Minister of Transport were referred to in addition to the local authority of the district.

(2) The Corporation may in any street within the heating limits lay down such service pipes with such stopcocks and other fittings as they deem necessary for supplying heat to premises

within those limits and may from time to time inspect repair alter or renew and may at any time remove any service pipe stopcock or other fitting laid down in a street whether by virtue of this subsection or otherwise.

(3) (a) Where a service pipe has been lawfully laid down in on or over any land not forming part of a street the Corporation may from time to time enter upon that land and inspect repair alter renew or remove the service pipe or lay down a new service pipe in substitution therefor but shall pay compensation for any damage done by them.

(b) Any dispute as to the amount of compensation to be paid under this subsection shall be determined by an arbitrator to be appointed in default of agreement by the Minister.

(4) In this section the expression "service pipe" means a pipe for supplying heat from a main to any premises.

12. The construction by the Corporation before the date of the passing of this Act of any mains pipes or other works for the purposes mentioned in section 7 (Works for provision of heat) of this Act is hereby sanctioned and confirmed and such mains pipes and works shall be deemed always to have formed part of the heating undertaking. Confirmation of existing works.

13.—(1) Before the Corporation—

(a) apply to the appropriate sanctioning authority for consent to the borrowing of money for the purpose of constructing laying down or executing any works for providing storing transmitting or distributing heat under the powers of this Act ; or

(b) lay down any main under the provisions of this Act other than a main extending for a distance of not more than two hundred yards from any main laid down in accordance with proposals previously made under this section ;

Consultation with authority and boards as to certain works.

they shall give to the Minister of Fuel and Power (in this section referred to as "the Minister") and to the authority and the electricity board and the gas board notice of their proposals and such information with regard thereto as the authority or the electricity board or the gas board may within six weeks of the receipt of such notice reasonably require and shall consult with the authority and the electricity board and the gas board on such proposals Any dispute between the Corporation and the authority or the electricity board or the gas board as to whether any information is reasonably required by the authority or the electricity board or the gas board under this subsection shall be referred to and determined by the Minister.

(2) Without prejudice to the generality of subsection (1) of this section such information shall include particulars of the proposals (if any) of the Corporation as to the standards of heat proposed to be maintained in premises supplied with heat under the powers of this Act and the measures to be taken with respect to—

- (a) the securing of the safety of the mains pipes electric lines and apparatus of the authority and the electricity board and the gas board from damage or injury arising directly or indirectly from any mains or pipes to be laid down or placed by the Corporation under the powers of this Act ;
- (b) the insulation of any such last-mentioned mains or pipes so as to prevent the escape of heat therefrom ;
- (c) the maximum and minimum temperatures and pressures at which hot water or steam may be stored transmitted or distributed by the Corporation ;
- (d) the methods for measuring the quantity temperature and pressure of the hot water or steam so stored transmitted or distributed ; and
- (e) the independent testing of such measurements.

(3) The authority and the electricity board and the gas board or any of them may within three months after the receipt of such notice or the receipt of such information (whichever is the later) make representations to the Minister with respect to such proposals.

(4) If no such representations are made the Corporation shall not proceed except in accordance with the proposals sent to the authority and the electricity board and the gas board or any alteration thereof which may be agreed.

(5) If any such representations are made the Corporation shall not proceed with their proposals except with the approval of the Minister and in accordance with any modification of such proposals which the Minister may require.

(6) The provisions of this section shall not apply to the construction extension modification or enlargement of a station for providing heat under the powers of this Act.

Attachment of
brackets &c. to
buildings and
bridges.

14.—(1) The Corporation may with the consent in writing of the owner of any building or wall or any bridge over any street attach thereto such brackets mains electric lines and attachments (in this section referred to as " attachments ") as may be required for the purposes of the heating undertaking.

(2) Where in the opinion of the Corporation any consent under subsection (1) of this section is unreasonably withheld they may make complaint to a court of summary jurisdiction who

may by order either allow the attachments subject to such terms (if any) as to compensation or rent or otherwise as they may think fit or disallow the attachments.

(3) The provisions of subsection (2) of this section shall not apply in relation to—

- (a) any building or wall forming part of an aerodrome ; or
- (b) any building or bridge which is designated in a list compiled or approved by the Minister of Town and Country Planning as being a building or bridge of special architectural or historic interest or any building or wall or bridge which the owner thereof alleges to be a building or wall or bridge of such interest ; or
- (c) any building or wall or bridge owned by any railway undertakers ; or
- (d) any building or wall owned by the authority or the electricity board or the gas board ;

but if in the opinion of the Corporation any consent under subsection (1) of this section is unreasonably withheld in relation to any such building or wall or bridge they may appeal in the case of a building or wall or bridge owned by any railway undertakers to the Minister of Transport in the case of a building or wall owned by the authority or the electricity board or the gas board to the Minister of Fuel and Power in the case of a building or wall or bridge being or alleged to be of special architectural or historic interest to the Minister of Town and Country Planning and in any other case to the Minister and the Minister of Transport the Minister of Fuel and Power the Minister of Town and Country Planning or the Minister as the case may be may by order either allow the attachments subject to such terms (if any) as to compensation or rent or otherwise as he thinks fit or disallow the attachments.

(4) Where any attachments have been affixed to a building or wall or bridge under this section and the person who gave the consent or who was the owner when the order allowing the attachments was made ceases to be the owner of the building or wall or bridge the subsequent owner may give to the Corporation notice requiring them to remove the attachments and subject to the provisions of this subsection the Corporation shall (unless otherwise agreed) within six months after the service of the notice remove the attachments :

Provided that the provisions of subsection (2) and subsection (3) of this section shall apply in relation to any such notice as they apply in relation to a refusal of a consent to the making of attachments.

(5) Where any attachments have been made under this section to any building or wall or bridge the owner of the building or

wall or bridge may require the Corporation at their own expense temporarily to remove the attachments where necessary during any reconstruction or repair of the building or wall or bridge.

(6) In this section—

the expression “owner”—

(a) in relation to a building or wall occupied under a tenancy for a term of years whereof five years or more remain unexpired means the occupier of the building ;

(b) in relation to a building or wall occupied under any other tenancy means the person who is receiving the rack rent or who would receive the rack rent if the building were let at a rack rent ;

(c) in relation to a building or wall forming part of an aerodrome means (notwithstanding anything in this subsection) the person having control of the aerodrome ; and

the expression “own” shall be construed accordingly ;

the expression “aerodrome” means an aerodrome licensed pursuant to an order made under the Air Navigation Act 1920.

10 & 11 Geo. 5.
c. 80.

Power to lay
down or erect
electric lines
&c.

15.—(1) For the purposes of the heating undertaking or in connection with the use or sale of electricity under the provisions of subsection (2) of section 7 (Works for provision of heat) of this Act the Corporation may within the heating limits lay down or erect electric lines and apparatus—

(a) in under or over any street subject however to the provisions of subsection (3) of this section ; and

(b) with the consent of every owner and occupier of any land not forming part of a street and with the consent of the local authority of the district in which that land is situate and also of the highway authority concerned if the electric line or apparatus will be laid down or erected within two hundred and twenty feet of any highway in on or over that land ;

and may from time to time inspect repair alter or renew or may at any time remove any electric line or apparatus laid down or erected by them whether by virtue of this section or otherwise :

Provided that a consent required for the purposes of this subsection shall not be unreasonably withheld and any question whether such a consent is or is not unreasonably withheld shall be referred to and determined by the Minister.

(2) (a) Where the Corporation in the exercise of the powers of this section lay down or erect any electric line or apparatus in on or over any land not forming part of a street or inspect repair alter renew or remove any electric line or apparatus laid down or erected in on or over any such land they shall from time to time pay compensation to every person interested in that land for any damage done to or injurious affection of that land by reason of the inspection laying erection repair alteration renewal or removal of the electric line or apparatus.

(b) Any dispute as to the amount of compensation to be paid under this subsection shall be determined by arbitration.

(3) The provisions of Part VI (Breaking open streets &c.) of the Third Schedule to the Water Act 1945 (except in section 22 8 & 9 Geo. 6. thereof the words "and outside those limits for the purpose of c. 42. laying any mains which they are authorised to lay and of inspecting repairing renewing or removing mains" and in section 25 subsection (4) thereof) and section 93 (Protection for works of navigation authorities and for catchment boards and railways) of the said Third Schedule shall apply with the necessary modifications to the laying down erection inspection repair alteration renewal or removal of electric lines and apparatus under this section and for the purpose of such application the heating limits shall be deemed to be the limits of supply.

(4) The provisions for the protection of the Postmaster-General and his telegraphic lines which are contained in the Electricity (Supply) Acts 1882 to 1936 as amended by the Electricity Act 1947 and in the schedule to the Electric Lighting (Clauses) Act 1899 shall so far as applicable extend and apply to any electric lines or apparatus laid down or erected under this section and references in those provisions to the electricity board or the undertakers shall be construed as references to the Corporation. 10 & 11 Geo. 6. c. 54. 62 & 63 Vict. c. 19.

(5) The powers of this section shall not be exercised except with the consent of the authority and the electricity board.

16.—(1) In any premises to which the Corporation supply Power to or propose to supply heat they may provide (but not manufacture) and may supply by way either of sale or hire any such fittings as may be required for or in connection with the utilisation of the heat so supplied and may instal repair renew or alter any such fittings whether supplied by them or not and may provide any materials and do any work required in connection with such installation repair renewal or alteration. supply fittings.

(2) The Corporation may make such charges as may be agreed or in default of agreement as may be reasonable for any fittings supplied or any materials provided or work done under this section at the request of the owner or occupier of the premises supplied.

(3) Any fittings let by the Corporation for hire and marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof—

(a) shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the person in whose possession the same may be ; and

(b) shall notwithstanding that they be fixed or fastened to any part of the premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and (subject to the provisions of the Hire Purchase Act 1938) removable by the Corporation :

1 & 2 Geo. 6.
c. 53.

Provided that nothing in this subsection shall affect the valuation for rating of any rateable hereditament.

(4) All fittings supplied by the Corporation under any hire purchase agreement shall until payment of the final instalment of the purchase money for such fittings be deemed for the purposes of subsection (3) of this section to be fittings let for hire by the Corporation.

(5) (a) The Corporation shall so adjust the charges to be made by them under this section as to meet any expenditure by them thereunder including interest upon any moneys borrowed for the purposes thereof and any sums carried to a sinking fund for repayment of moneys so borrowed.

(b) The total sums expended and received by the Corporation in connection with the purposes of this section in each year including interest and any sums carried to a sinking fund shall be separately shown in the abstract of accounts of the Corporation for that year.

(6) If any person wilfully injures or suffers to be injured any fittings belonging to the Corporation he shall be liable to a penalty not exceeding five pounds and the Corporation may do all such work as is necessary for repairing any injury done and may recover the expenses reasonably incurred by them in so doing from the offender and if the amount does not exceed twenty pounds summarily as a civil debt.

Heating
charges.

17.—(1) The Corporation may from time to time prescribe a scale of charges (in this section called "heating charges") for heat supplied to premises under the powers of this Act and for connecting premises to the heating undertaking and (where premises have been disconnected from the said undertaking) for re-connecting premises thereto and where heat is so supplied to any premises the heating charges in accordance with the scale shall be payable by the occupier of those premises except in any

case where the owner has agreed with the Corporation to pay the same in which case they shall be payable by the owner.

(2) The heating charges payable by any person may after a demand therefor be recovered from him by the Corporation as a simple contract debt in any court of competent jurisdiction and subject as hereinafter provided where a person fails to pay within seven days after a demand therefor any heating charges payable by him in respect of any premises the Corporation may cut off the supply of heat to the premises and recover the expenses reasonably incurred by them in so doing in the same manner as the heating charges :

Provided that if before the expiration of the said seven days notice is given to them that there is a dispute as to the amount due in respect of the heating charges or as to the liability to pay the same the Corporation shall not cut off the supply of heat until the dispute has on the application of either party been determined by a court of competent jurisdiction.

(3) Without prejudice to any other method of recovery any heating charges payable by the tenant of any premises belonging to the Corporation and connected as aforesaid may be recovered as rent due from him.

18. The Corporation may require any person desiring to take Security for a supply of heat or to be supplied with fittings or materials under payment of this Act to deposit with the Corporation such sum as the Corporation may reasonably require as security for the payment of any moneys which may become due from him to the Corporation in respect of such supply of heat or of any fittings or materials supplied to him in connection therewith.

19.—(1) Subject to the provisions of this section any authorised officer of the Corporation shall on producing if so required some duly authenticated document showing his authority have a right to enter at all reasonable hours any premises to which the Corporation are supplying or have agreed to supply heat under the powers of this Act or any premises upon which any fittings have been installed for the purpose of or in connection with supplying heat to any premises as aforesaid—

- (a) for the purpose of inspecting and examining any such fittings whether belonging to the Corporation or not ;
- (b) for the purpose of ascertaining whether there is or has been on or in connection with the premises any contravention of the provisions of this Act or of any bye-law made thereunder ;
- (c) for the purpose of ascertaining whether or not circumstances exist which would authorise the Corporation to take any action or execute any work under this Act ;

- (d) for the purpose of taking any action or executing any work authorised or required by this Act to be taken or executed by the Corporation:

Provided that—

- (a) except in cases of emergency arising from defects in any fittings admission to any premises shall not be demanded as of right unless twenty-four hours' notice of the intended entry has been given to the occupier;
- (b) nothing in this section shall authorise any authorised officer of the Corporation without the previous consent in writing of the authority the electricity board or the gas board as the case may be to enter any premises occupied or used by the authority the electricity board or the gas board in connection with the generation or supply of electricity or the manufacture storage or supply of gas other than offices and showrooms;
- (c) nothing in this section shall authorise any officer of the Corporation without the previous consent in writing of the commission to enter any premises (other than offices) occupied or used by the commission in connection with their undertaking.

(2) If it is shown to the satisfaction of a justice of the peace on sworn information in writing that—

- (a) admission to any premises has been refused or that refusal is apprehended or that the premises are unoccupied or that the occupier is temporarily absent or that the case is one of urgency or that an application for admission would defeat the object of the entry; and
- (b) there is reasonable ground for entry into the premises for any such purpose as aforesaid;

the justice may by warrant under his hand authorise the Corporation by any authorised officer to enter the premises if need be by force:

Provided that such a warrant shall not be issued unless the justice is satisfied either that notice of the intention to apply for a warrant has been given to the occupier or that the premises are unoccupied or that the occupier is temporarily absent or that the case is one of urgency or that the giving of such notice would defeat the object of the entry.

(3) An authorised officer of the Corporation entering any premises by virtue of this section or of a warrant issued thereunder may take with him such other persons as may be necessary and on leaving any unoccupied premises which he has entered by virtue of such a warrant shall leave them as effectually secured against trespassers as he found them.

(4) Every warrant granted under this section shall continue in force until the purpose for which the entry is necessary has been satisfied.

(5) If any person who in compliance with the provisions of this section or of a warrant issued thereunder is admitted into a factory or workplace discloses to any person any information obtained by him in the factory or workplace with regard to any manufacturing process or trade secret he shall unless such disclosure was made in the performance of his duty be liable to a penalty not exceeding one hundred pounds or to imprisonment for a term not exceeding three months.

20.—(1) If any person wilfully and without the consent of the Corporation turns on opens closes shuts off or otherwise interferes with any valve cock or other work or apparatus belonging to the Corporation and thereby improperly causes the supply of heat to be interfered with he shall be liable to a penalty not exceeding five pounds and (whether proceedings be taken against him in respect of his offence or not) the Corporation may recover from him the amount of any damage sustained by them either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt. Interference with apparatus &c.

(2) If any person wrongfully takes uses or diverts any heat from any apparatus provided for the purposes of this Act he shall (without prejudice to any other right or remedy of the Corporation) be liable to a penalty not exceeding five pounds.

21.—(1) The Corporation may make byelaws for preventing the waste misuse or contamination of or interference with the circulation of hot water supplied or intended to be supplied by them under this Act or of hot water or steam used by them in connection with the supply and use of heat under this Act or for preventing the waste or undue consumption of heat supplied under this Act. Byelaws for protection of heating undertaking.

(2) Byelaws under this section may include provisions—

(a) prescribing the size nature materials strength and workmanship and the mode of arrangement connection disconnection insulation alteration and repair of the water fittings to be used ; and

(b) forbidding the use of any water fittings which are of such a nature or are so arranged or connected as to cause or permit or be likely to cause or permit—

(i) waste misuse or contamination of or interference with the circulation of hot water or steam ;

(ii) reverberation in pipes ; or

(iii) waste or undue consumption of heat.

(3) If any person contravenes the provisions of any byelaw made under this section the Corporation may without prejudice to their right to take proceedings for a penalty in respect of such contravention cause any water fittings belonging to or used by that person which are not in accordance with the requirements of the byelaws to be altered repaired or replaced and may recover the expenses reasonably incurred by them in so doing from the person in default either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt.

(4) Nothing in this section or in any byelaw made thereunder shall apply to any water fittings used on premises which belong to the commission and are held or used by them for the purposes of their railway so long as those fittings are not of such a nature or so arranged or connected as to cause or permit or be likely to cause or permit—

- (a) waste misuse or contamination of or interference with the circulation of hot water or steam ;
- (b) reverberation in pipes ; or
- (c) waste or undue consumption of heat :

Provided that the exemption conferred by this subsection shall not extend to water fittings used in hotels or dwelling-houses or in offices not forming part of a railway station.

(5) Nothing in this section or in any byelaw made thereunder shall apply to any station for generating electricity belonging to the authority.

(6) In this section the expression " water fittings " includes air heaters water heaters mains pipes taps cocks valves ferrules and other works used in connection with the supply or use of heat or hot water.

(7) As respects byelaws made under this section the confirming authority for the purposes of section 250 (Procedure &c. for making byelaws) of the Act of 1933 shall be the Minister.

Discounts for
prompt
payment.

22. The Corporation may if they think fit make an allowance by way of discount on all sums of money due to them for the supply of heat from any person who pays the same within such time of the demand thereof as the Corporation think fit to prescribe in that behalf and notice to that effect shall (if and so long as the Corporation shall allow such discount) be endorsed on every demand note in respect of such charges :

Provided that the Corporation shall make the same allowance to all persons under similar conditions.

23.—(1) If the occupier of any premises supplied with heat by the Corporation quits the premises without giving notice of his intention so to do to the Corporation in manner provided by this section he shall be liable to pay to the Corporation all money accruing due for heat supplied by them to the premises and for meter rent up to the next date on which the register of the meter on the premises is usually ascertained or the date from which any subsequent occupier of the premises requires the Corporation to supply heat to the premises whichever first occurs.

Notice to be given before quitting premises supplied with heat.

(2) The notice to be given under this section by an occupier of premises shall be given in writing and sent by registered post or otherwise delivered to the Corporation at the civic offices so that it is received by the Corporation at least twenty-four hours before he quits the premises.

(3) The foregoing provisions of this section or a statement of the effect thereof shall be endorsed upon every demand note for heating charges payable to the Corporation.

24.—(1) The provisions of the Town and Country Planning Acts 1944 and 1947 shall where applicable apply to the heating undertaking as if that undertaking were a statutory undertaking and as if the Minister of Health were the "appropriate Minister" within the meaning of section 119 (Interpretation) of the Town and Country Planning Act 1947.

Application of certain Acts to heating undertaking.
7 & 8 Geo. 6.
c. 47.
10 & 11 Geo. 6.
c. 51.

(2) Section 4 (Restriction on laying of mains &c. in special roads) of the Special Roads Act 1949 shall apply in relation to the powers conferred on the Corporation by this Act to lay down or erect mains pipes electric lines and apparatus in under or over any land for the purpose of the heating undertaking as it applies in relation to the powers conferred on statutory undertakers as defined in the first-mentioned Act by or under any enactment to lay down or erect any apparatus on under or over any land and the expression "statutory undertakers" in the said section 4 shall be construed accordingly.

12 & 13 Geo. 6.
c. 32.

25.—(1) The Corporation shall give to the authority and the electricity board and the gas board such reports and returns and such information with respect to the heating undertaking as the authority or the electricity board or the gas board may reasonably require and the authority and the gas board shall give to the Corporation such reports and returns and such information with respect to any supply by them of heat as the Corporation may reasonably require.

Reports &c. with respect to heating undertaking &c.

(2) Any dispute between the Corporation on the one hand and the authority or the electricity board or the gas board on the other hand as to whether any reports returns or information

are reasonably required by the authority or the electricity board or the gas board or the Corporation (as the case may be) shall be determined by the Minister of Fuel and Power.

For protection
of electricity
and gas
undertakers.

26. For the protection of the authority and the electricity board and the gas board (each of whom is in this section referred to as "the undertakers") the following provisions shall unless otherwise agreed in writing between the Corporation and the undertakers apply and have effect:—

(1) In this section—

the expression "apparatus" means—

(a) as regards the authority and the electricity board any electric lines or works (as respectively defined in the Electric Lighting Act 1882) belonging to the authority or the electricity board (as the case may be);

(b) as regards the gas board any mains pipes or other apparatus belonging to the gas board;

the expression "authorised work" means any main service pipe conduit or other work laid down placed or executed by the Corporation for the purpose of the heating undertaking in the exercise of the powers of this Act or any Act incorporated therewith:

(2) Where the Corporation require to dig or sink any trench for laying down placing or constructing any authorised work near to which any apparatus has been lawfully placed the Corporation shall give to the undertakers to whom such apparatus belongs notice in writing of such requirement together with plans sections and particulars of the authorised work to be laid in such trench and if it should appear to the undertakers that the laying down placing or construction of such authorised work would injure interfere with or endanger any apparatus or interfere with the access thereto or impede the supply of electricity or gas by means thereof the undertakers may within fourteen days from the receipt of such notice give to the Corporation notice requiring them to alter the position or depth of such apparatus in such manner as may be reasonably necessary for avoiding any such injury interference danger or impediment and any difference as to the necessity for such alteration or the manner of carrying out the alteration shall be determined by arbitration All such alterations shall (save as in this section provided) be carried out by and at the expense of the Corporation with as little detriment and inconvenience to the undertakers as the circumstances will admit and to the reasonable satisfaction

of the engineer of the undertakers and under his superintendence unless after receiving not less than three days' notice for that purpose (which notice the Corporation are hereby required to give except in cases of emergency) he refuses or neglects to give such superintendence at the time specified in the notice for the commencement of such work or discontinues the same during the laying down placing or construction of such work:

- (3) The Corporation in laying down placing or constructing any authorised work shall not interfere with the access to any apparatus to any greater extent than is necessary for the purpose of or in connection with the carrying out of that work and shall not remove or displace any apparatus or do anything to endanger any apparatus or impede the passage of electricity or gas into or through any apparatus without the consent (which shall not be unreasonably refused) of the undertakers or in any other manner than the undertakers shall reasonably approve nor in the case of apparatus proposed to be removed or displaced until good and sufficient apparatus and other works reasonably necessary or proper for continuing the supply of electricity or gas as the same was supplied by the apparatus proposed to be removed or displaced shall at the expense of the Corporation have been first made and laid down in lieu thereof and be ready for use to the reasonable satisfaction of the engineer of the undertakers:

- (4) If the undertakers shall desire—

(a) to alter the position or depth of any apparatus which the Corporation may be required to alter under subsection (2) of this section and shall within the period of fourteen days referred to in that subsection give not less than seven days' notice thereof to the Corporation; or

(b) to provide any apparatus in lieu of any apparatus proposed to be removed or displaced under subsection (3) of this section and shall within the period of fourteen days from the date of the giving of their consent under that subsection or as the case may be from the date of a determination that such consent is unreasonably refused give not less than seven days' notice thereof to the Corporation;

the undertakers may themselves carry out any of the said works and shall commence execute and complete the same with all reasonable dispatch and to the reasonable satisfaction of the Corporation and all reasonable

expenses properly incurred by them under this subsection shall be repaid to them by the Corporation:

Provided that the undertakers shall not under this subsection execute any works which are not reasonably necessary and any difference as to the necessity for such works shall be determined by arbitration:

(5) The reasonable expense of all repairs or renewals of—

(i) any apparatus existing at the time of the laying down placing or construction of the authorised work ;
or

(ii) any apparatus substituted for such existing apparatus or any part thereof and being of reasonably similar size and type ;

which may at any time hereafter be rendered reasonably necessary by reason of—

(a) the acts or defaults of the Corporation their contractors agents workmen or servants or any person in the employ of them or any of them in the exercise of the powers of this Act ; or

(b) any subsidence resulting from the laying down placing construction or removal of any authorised work whether during the laying down placing construction or removal of the authorised work or at any time within two years thereafter ;

shall be borne and paid by the Corporation :

(6) The Corporation in laying down placing constructing or removing any authorised work shall make good all damage done by them to any apparatus and shall make compensation to the undertakers for any loss damage costs or expenses which they may sustain by reason of any interference with such apparatus or the access thereto or with the private service or supply lines or pipes of any person supplied by the undertakers with electricity or gas :

(7) If any difference shall arise between the Corporation and the undertakers or their respective engineers with respect to any matter under this section the matter in difference shall be referred to arbitration :

(8) In settling any difference under this section the arbitrator shall have regard to any duties or obligations which the undertakers may be under in respect of their apparatus and any duties or obligations which the Corporation may be under in respect of the authorised work and may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid as far as may be reasonably possible interference with any purpose for which the apparatus is used.

27.—(1) Nothing in this Act shall authorise the Corporation (except with the consent of the Conservators of the River Thames which shall not be unreasonably withheld) in connection with the heating undertaking to—

For protection
of
Conservators
of River
Thames.

- (a) construct or lay down any work which will interfere with that part of the channel of the river Thames above Teddington Lock and the watercourses which are respectively to be treated as and deemed to be the main river and parts thereof and are shown by distinctive colours on the map of the river Thames (above Teddington Lock) catchment area prepared in pursuance of section 5 (Maps of catchment areas) of the Land Drainage Act 1930 and for the time being in force ;

20 & 21 Geo. 5.
c. 44.

- (b) discharge directly or indirectly into such channel or watercourses steam or water at such a temperature or in such a condition as may injuriously affect such channel or watercourses or the flow or purity of the water therein.

(2) Any question as to whether such consent as aforesaid is unreasonably withheld shall be determined by arbitration.

(3) Nothing in this Act shall affect the powers rights authorities or jurisdiction of the Conservators of the River Thames under Part V (Prevention of pollution) of the Thames Conservancy Act 1932.

22 & 23 Geo. 5.
c. xxxvii.

28. Nothing in this Act shall exonerate the Corporation from any indictment action or other proceedings for nuisance in the event of any nuisance being caused or permitted by them.

Corporation
not to be
exempted from
proceedings
for nuisance.

29.—(1) The Corporation shall in respect of the heating undertaking keep separate accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division on the one side all receipts and on the other side all payments and expenses such payments and expenses being divided so as also to show the amounts expended in respect of each of the following purposes (that is to say):—

Separate
accounts in
respect of
heating
undertaking.

- (a) the working and establishment expenses and the cost of the maintenance of the heating undertaking ;
- (b) the interest on moneys borrowed or applied by the Corporation for the purposes of or connected with the heating undertaking ;
- (c) the requisite appropriations instalments or sinking fund payments for the repayment of moneys borrowed or applied by the Corporation for the purposes of or connected with the heating undertaking ;
- (d) all other expenses (if any) of the heating undertaking properly chargeable to revenue.

(2) The Corporation shall show in their accounts relating to the heating undertaking all items which ought to be entered therein in order to show the financial position of that undertaking.

Power to
borrow.

30.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority the sum requisite for the payment of the costs charges and expenses of this Act and they shall pay off all moneys so borrowed within such period as the Corporation may determine not exceeding five years from the passing of this Act.

(2) The provisions of Part IX (Borrowing) of the Act of 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

Application of
provisions of
Act of 1936.

31. The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

Section 271 (Interpretation of “provide”);

Section 283 (Notices to be in writing; forms of notices &c.);

Section 284 (Authentication of documents);

Section 285 (Service of notices &c.);

Section 286 (Proof of resolutions &c.);

Section 288 (Penalty for obstructing execution of Act);

Section 296 (Summary proceedings for offences);

Section 297 (Continuing offences and penalties);

Section 299 (Inclusion of several sums in one complaint &c.);

Section 304 (Judges and justices not to be disqualified by liability to rates);

Section 328 (Powers of Act to be cumulative).

Inquiries by
Ministers.

32. The Minister the Minister of Fuel and Power and the Minister of Transport may hold such inquiries as they respectively may consider necessary in regard to the exercise of any powers conferred upon them or the giving of consents under this Act and section 290 (Power of government departments to direct inquiries) of the Act of 1933 shall apply accordingly.

33. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration other than questions or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the reference shall be to a single arbitrator to be agreed upon between the parties to the question or dispute or in default of such agreement appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such arbitration.

34. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 (Development orders) and subsection (1) of section 118 (Application to land regulated by special enactments) of that Act.

35. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

Ch. 1

*Swindon Corporation
Act, 1949*

12 & 13 GEO. 6

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